



OFFICE OF THE POLICE COMMISSIONER

ONE POLICE PLAZA • ROOM 1400

January 12, 2026

Memorandum for: Deputy Commissioner, Trials

Re: **Lieutenant Kenneth Farrell**
Tax Registry No. 943220
Manhattan Court Section
PODS Case No. C-031230

The above named member of the service appeared before Assistant Deputy Commissioner, Trials Paul M. Gamble Sr., on October 2, 2025 and was charged with the following:

DISCIPLINARY CASE NO. C-031230

1. Said Lieutenant Kenneth Farrell, on or about April 6, 2023, while on duty and assigned to the 105 Precinct, utilized excessive physical force, in that, said Lieutenant wrongfully restricted the breathing of an individual known to the Department.

**P.G. 221-01, Page 2 & Page 3,
Paragraph 2 (b)**

**FORCE GUIDELINES
CHOKEHOLD**

In a Memorandum dated November 18, 2025, Assistant Deputy Commissioner, Trials Gamble found Lieutenant Farrell guilty of Specification No. 1. Having read the Memorandum and analyzed the facts of this matter, I approve of the findings but disapprove the penalty.

I have considered the totality of the circumstances concerning the misconduct for which Lieutenant Farrell has been found guilty and deem that separation from the Department is warranted. However, instead of an outright dismissal from the Department, an alternative manner of separation from the Department will be permitted for Lieutenant Farrell at this time.

It is therefore directed that an *immediate* post-trial settlement agreement be implemented with Lieutenant Farrell in which he shall forfeit thirty (30) suspension days (to be served), be placed on one (1) year dismissal probation, forfeit all time and leave balances, and immediately file for vested-interest retirement.

LIEUTENANT KENNETH FARRELL

DISCIPLINARY CASE NO. C-031230

Such vested interest retirement shall also include Lieutenant Farrell's written agreement to not initiate administrative applications or judicial proceedings against the New York City Police Department to seek reinstatement or return to the Department. This agreement is to be implemented ***IMMEDIATELY***. Should Lieutenant Farrell not agree to the terms of this vested-interest retirement agreement as noted, I shall direct that said Lieutenant be terminated from the Department without further proceedings.


Jessica S. Tisch
Police Commissioner



POLICE DEPARTMENT

November 18, 2025

-----X
In the Matter of the Charges and Specifications :

Case No.

- against - :

C-031230

Lieutenant Kenneth Farrell :

Tax Registry No. 943220 :

Medical Division :

-----X
At:

Police Headquarters
One Police Plaza
New York, NY 10038

Before:

Honorable Paul M. Gamble, Sr.
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department:

Clair Tzeng, Esq.
Department Advocate's Office
One Police Plaza, Room 402
New York, NY 10038

For the Respondent:

Robert E. Brown, Esq.
Law Offices of Robert E. Brown, P.C.
14 Wall Street, 20th Floor
New York, NY 10005

To:

HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

CHARGES AND SPECIFICATIONS

1. Said Lieutenant Kenneth Farrell, on or about April 6, 2023, while on duty and assigned to the 105 Precinct, utilized excessive physical force, in that, said Lieutenant wrongfully restricted the breathing of an individual known to the Department.

P.G. 221-01, Page 2 & Page 3,
Paragraph 2(b)

FORCE GUIDELINES—
CHOKEHOLD

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on October 2, 2025.

Respondent, through his counsel, entered a plea of Not Guilty to the subject charge. The Department offered body-worn camera video evidence and called Lieutenant Louis Ellis to testify. Respondent testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all the evidence in this matter, I find Respondent Guilty of using a chokehold.

ANALYSIS

The following is a summary of the facts which are not in dispute.

On April 6, 2023, at approximately 0043 hours, Respondent and five other police officers¹ assigned to the 105th Precinct responded to a 10-31 call of a burglary in progress (T. 22). When Respondent arrived at the location, he was informed by Police Officer Kolody that the suspect they were looking for was JG², who was the brother of the complainant, PG³; that he may be intoxicated but he was very "heated;" that he had been staying with his brother but that they had been clashing; that there had been a report of a burglary from the week before at that location; that JG was alleged to have broken a window at the incident location and damaged a

¹ Police Officers Albert Lekaj, Michael Kolody, Irina Jimenez, and Erica Fermin were at the scene, in addition to one other female police officer who was not identified (T. 22).

² JG's identity is known to the Department.

³ PG's identity is known to the Department.

car door; and that JG had departed the location in a white van (Dept. Ex. 1 at 1:04-2:37).

Respondent, and the two units, departed PG's location to conduct a canvass of the neighborhood.

Approximately three minutes later, Respondent arrived at a location several blocks away, where JG had been stopped as he sat inside a parked white van (Dept. Ex. 1 at 5:49).

Respondent stepped out of his car and watched four police officers speak with JG and eventually order him out of the van. Once JG exited his van, he was placed under arrest (*Id.* at 5:50-7:51).

As the police officers placed JG in handcuffs, he began shouting at them, complaining that the handcuffs were hurting him. He cried out, apparently from pain, repeatedly. JG's brother, PG, stood in the street, observing the arrest. Both brothers hurled insults at each other in English and yelled at each other in another language. As JG was being escorted to a police car, Respondent and the other police officers attempted to de-escalate the situation and asked PG to return to his home several times (*Id.* at 7:47-10:25).

As the police officers brought JG to the RMP, he asked if he could smoke a cigarette before entering it; Respondent denied his request (*Id.* at 10:18-10:20). Once JG reached the RMP he was to be transported in, a police officer opened the right rear passenger door (*Id.* at 10:24-10:27). JG was then led to stand in the open doorway of the RMP. JG then yelled at his brother, "When I ... I'm gonna f—k ...," then turned to his right and yelled, "Don't flex on me, bro ...". At this point, Respondent reached forward with his right hand and contacted JG's neck (*Id.* at 10:28-10:43). The issue before this Tribunal is whether this contact restricted JG's breathing.

The following is a summary of the relevant evidence admitted at the trial.

Lieutenant Louis Ellis

Lieutenant Ellis testified that he is a team leader in Group 54, Internal Affairs Bureau (T. 20). In October 2023, he was assigned an investigation which was initiated by a call from Lieutenant Clarence Hopkins, the Integrity Control Officer of the 105th Precinct. In that call, Lieutenant Hopkins reported an excessive force incident on April 6, 2023 (T. 21-22).

During the investigation, Lieutenant Ellis learned that the subject of the alleged excessive force was JG, who had been arrested in connection with the above-described burglary call. The investigation revealed that it was JG's brother, PG, who placed the call to 911 about the burglary (T. 22).

Investigators from Group 54 attempted to interview JG on April 6, 2023 at Long Island Jewish Hospital, but were unable to do so because he was sedated (Resp. Ex. C). JG was taken from the 105th Precinct to Long Island Jewish Hospital for psychiatric evaluation. While he was being transported there, he spat at EMS personnel and damaged a pulse oximeter. At the hospital, JG was administered Haldol, Ativan, and Thorazine as a response to his aggressive behavior (*Id.*).

Lieutenant Ellis testified further that on May 15, 2023, members of his team were able to interview JG at Queens Criminal Court (T. 29-31). In that interview, JG admitted that he was unruly during his arrest on April 6, 2023. He stated that while he was in the precinct, a police officer slammed him against a wall, causing him to pass out. JG alleged that he was unable to breathe and that he saw spots. He further alleged that he was elbowed by the same officer who had slammed him. JG was taken to a hospital but claimed not to remember what his diagnosis was. He denied ever being choked and did not have a complaint against this Department (T. 48-49; Resp. Ex. C).

Lieutenant Ellis testified further that he obtained body-worn camera video from Respondent and Police Officer Lekaj, in evidence as Department's Exhibits 1 and 2, respectively (T. 23, 27).

On cross-examination, Lieutenant Ellis testified that one of the factors he considered during his investigation was that as he observed Respondent's hand around JG's neck on Respondent's body-worn camera recording, JG's voice appeared to change. He conceded, however, that the change in JG's voice, standing alone, would not be irrefutable proof that he was being choked (T. 35-36). He affirmed that members of his team interviewed Respondent on November 29, 2023, and further affirmed that during the interview, Respondent asserted that he put his hand up to prevent JG from spitting (T. 60-61).

Respondent's Body-Worn Camera

The following is a summary of Respondent's body-worn camera video recording, entered into evidence as Department's Exhibit 1.

- | | |
|-------------------|---|
| 0:00-3:31 | Respondent arrives on scene and exits his RMP. PO Lekaj briefs him and answers Respondent's follow-up questions. |
| 3:32-5:42 | Respondent re-enters the RMP. The RMP travels for a short time before coming to a stop. He sits in the passenger seat before exiting. |
| 5:43-7:32 | Respondent walks over to the subject of the stop, a young man in a white van, later identified as JG. He walks to the front of the vehicle before looking through the passenger side window, with his flashlight illuminating the vehicle's interior. |
| 7:33-8:30 | Respondent walks toward the driver's side of the vehicle and observes four officers placing JG in handcuffs. JG begins screaming. |
| 8:31-9:39 | JG directs his screaming towards a man off-screen. Respondent approaches that man, later identified as PG, and directs him to maintain his distance and return to his residence. |
| 9:40-10:41 | Respondent returns to JG and escorts him to the right rear passenger door of an RMP. JG asks whether he can smoke a cigarette before entering the |

- RMP; Respondent tells him that he cannot. JG begins shouting at PG, then turns to his right, shouting at a police officer.
- 10:42-10:46** Respondent moves his hand to JG's neck, with the web of his thumb apparently touching JG's throat. Respondent's thumb appears to be bent toward JG's neck. JG lowers his head and asks, "Are you choking me?"
- 10:47-11:10** Respondent removes his right hand from JG's neck and palms the right side of his head, pushing him toward the rear interior compartment of the RMP. JG enters the RMP on his stomach while being pulled inside by his arms.
- 11:11-11:55** Respondent removes JG from the RMP, then places him inside again in a seated position. PO Lekaj places a seatbelt on JG before exiting the RMP and closing the left rear door.
- 11:56-16:09** Respondent returns to his RMP and enters the vehicle. He remains inside for a few moments, then exits and stands by observing other officers search the interior of the van.

(Dept. Ex. 1).

Department's Exhibit 1A is a screenshot of the video at 10:42, capturing Respondent's hand around JG's neck as they both stood outside the right rear passenger door of the RMP.

Police Officer Lekaj's Body-Worn Camera

The following is a summary of Police Officer Albert Lekaj's body-worn camera video recording, entered into evidence as Department's Exhibit 2.

- 0:00-2:50** PO Lekaj arrives on scene and exits his RMP. He walks over to officers patting down JG next to a white van. The officers then place JG in handcuffs as he screams.
- 2:51-4:28** JG begins yelling at a man off-screen, later identified as PG. PO Lekaj walks over to PG and observes Respondent instructing him to return to his home. PO Lekaj stays with PG as Respondent and other police officers escort JG to the right rear door of an RMP.
- 4:29-4:52** PO Lekaj approaches the left rear door of the RMP and observes Respondent attempting to place JG inside. PO Lekaj speaks to JG and urges him to follow Respondent's direction.
- 4:53-4:57** Respondent wraps his right hand around JG's neck; a portion of his hand is on exposed skin while the remainder is on JG's clothing. Respondent's

- index and middle fingers appear to be crooked toward JG's neck. Respondent pushes JG against the RMP, and his hand shifts downward.
- 4:58-5:13** Respondent removes his hand before placing it against JG's head. Respondent pushes JG into the RMP on his stomach. PO Lekaj pulls JG by his shirt further into the RMP.
- 5:14-6:08** JG lays still on his stomach for a few moments before Respondent pulls him out of the RMP by his arms. PO Lekaj assists Respondent in maneuvering JG into a seated position before placing a seatbelt on him. PO Lekaj then exits the RMP and closes the door.
- 6:09-15:13** PO Lekaj enters the driver's seat of the RMP and drives JG to the 105th Precinct with PO Jimenez.
- 15:14-20:10** PO Lekas and PO Jimenez exit the RMP and remove JG from the rear compartment.⁴ He and his partner guide JG to the lobby where they conduct an inventory search in front of the Desk Officer.
- 20:11-22:30** PO Lekaj guides JG to a cell where he removes his boots and sweatpants' drawstrings, as other officers hold JG in place.
- 22:31-23:36** PO Lekaj leaves the cell to search for leg shackles. His supervisor tells him all the leg shackles are at the hospital.
- 23:37-24:08** PO Lekaj returns to the cell and informs the other officers about the leg shackles.

(Dept. Ex. 2).

Department's Exhibit 2A is a screenshot of the video at 4:53, capturing Respondent's hand on JG's neck from the perspective of the left side of the RMP, through the open passenger door.

Respondent

Respondent testified that he was appointed to this Department in 2007 (T. 69). On April 6, 2023, at approximately 0040 hours, he responded to a radio run of 10-31, family burglary.

⁴ From the moment that JG stepped from the RMP until he was placed in the holding cells at the 105th Precinct, he engaged in a verbally abusive, profanity laden tirade against PO Lekaj, PO Jimenez, and the Desk Officer. While still in the RMP, he chanted, "Suck my d—k." As he exited the RMP, he insulted PO Jimenez's physical appearance, offering a vile assessment of her fecundity. He referred to the Desk Officer as a "fat heifer" and disparaged her hair. He threatened Respondent and insulted each police officer who came within his view. He repeatedly chanted, "Suck my d—k" (DE 2, 15:52-21:03). All Members of Service who appeared on PO Lekaj's body-worn camera displayed remarkable equanimity in the face of this relentless, unwarranted invective.

When he arrived at the original scene, he met PG, who explained that his brother, JG, had broken a window and done some damage to a car before leaving in a white van. Respondent directed several sector cars which had responded to the location to canvass the area; JG's white van was eventually located several blocks away (T. 70).

Police officers from the sector units then directed JG to step out of the van, placed him against the side of it, and attempted to handcuff him (T. 70). Respondent testified that JG yelled, screamed and complained the cuffs were too tight, while shouting profanities (T. 70-71). He testified further that he did not observe anything that would have led him to believe that the handcuffs were, in fact, too tight (T. 71). Respondent testified that it was his voice that was captured on his body-worn camera telling PG to move onto the sidewalk to keep him separated from JG and avoid further conflict (T. 72).

Once JG was handcuffed, Respondent escorted him to an RMP for transportation to the 105th Precinct for arrest processing; he selected an RMP with a wire cage which separated the front compartment from the rear (*Id.*). Respondent testified that during the incident, he heard JG spitting several times, from the time that he was at the side of his van to the point where he was about to enter the RMP. When JG reached the RMP, he and PG were still yelling and cursing at each other; Respondent stated that he heard them speaking another language. He testified that as they reached the RMP, JG asked Respondent if he could smoke a cigarette before getting in the RMP, but Respondent told him that he could not (T. 73).

Respondent testified that JG then turned to face him, with Police Officer Kolody standing on Respondent's left side; at that moment, he heard JG clearing his throat as if preparing to spit in his face (T. 73, 74). He testified that he then placed his hand "up under [JG's] chin to stop him from spitting. Responded stated that he initially placed his hand on JG's chin but felt him

move his body downward; it was at that point that he heard JG ask, “Are you choking me?” He testified that as soon as he heard that, he removed his hand from the area of JG’s face.

Respondent acknowledged that he heard the pitch of JG’s voice change but denied that he exerted any pressure on JG’s throat which would have caused the change in his voice (T. 74). He testified that he then pushed JG’s face and “mushed⁵” him into the RMP (T. 75).

Respondent testified further that when JG dropped his weight, it caused Respondent to fall, landing on his knee, as well as injuring his shoulder. He completed a line of duty report and an aided form to document his injury⁶ (*Id.*). Respondent testified that after JG was transported to the 105th Precinct, he had no further interaction with him (T. 77).

Respondent was shown Department’s Exhibit 2A in evidence; he identified the screenshot as taken from Police Officer Lekaj’s body-worn camera video. He described the photograph as depicting his four fingers being on the outside of JG’s sweatshirt; his thumb was not visible in that photograph. He denied that he was applying any pressure to JG’s neck at that point (T. 78). Respondent acknowledged that a chokehold was a prohibited procedure under the Patrol Guide; testified that he had attempted to de-escalate the interactions between JG and PG; and characterized his actions as objectively reasonable. After being read the definition of a chokehold in Patrol Guide procedure 221-01, he denied placing any pressure on JG’s throat, carotid artery or windpipe (T. 79). Respondent further described his interaction with JG as unpredictable and unfolding quickly (T. 81). He explained further that he had no time for reflection and never intended to place JG in a chokehold (T. 82). Respondent testified that JG

⁵ I take judicial notice that the past tense form of the verb “mush” is slang for a forceful, pressing motion to the forehead (*See* <https://www.urbandictionary.com/define.php?term=The+Mush&page=2>).

⁶ Respondent testified that to treat the injury, he has received physical therapy, received cortisone injections and was scheduled for surgery to repair his “AC joint” and labrum (T. 76).

was actively resisting arrest during the interaction; it was of brief duration; and his preparation to spit represented a threat (T. 83-84).

Respondent detailed that he has received five Excellent Police Duty awards and is a recipient of the Police Commissioner's Centurion Award; he was also named Supervisor of the Year in the 107th Precinct (T. 82). Finally, he has been recognized as Cop of the Month on two or three occasions (T. 83).

On cross-examination, Respondent conceded that although JG appeared to be preparing to spit at him, he was never spat upon (T. 89). He acknowledged that it would be inappropriate to place his hand around someone's neck to prevent them from spitting but clarified, "Yes. That's why I placed my hand underneath his chin" (T. 90). When asked what was underneath a person's chin, he replied, "That would be their neck, their throat, their windpipe, their carotid artery" (*Id.*). Respondent then demonstrated for the Tribunal the manner in which he placed his hand on JG; the Tribunal described it as "... the witness is gesturing by lifting his chin up and holding ... his right hand with his ... thumb on his right cheek, and his other fingers – I can't actually see his other fingers, but his fingers on the left side of his face around the jawline" (T. 91).

Respondent was then asked whether his hand slipped from that position and arrived at JG's neck; he admitted that his hand did slip and move (*Id.*). When asked where his hand slipped to, Respondent testified, "From the still photo that was shown before, it actually looks like my finger is to the side of his neck ... my fingers appear on the outside of his sweatshirt to the side of his neck (T. 91-92). Respondent was confronted with his Department interview, where he was asked, "What about now, at 00:47:46. Is your position that your hand is still on his jawbone or is on his throat?" and he responded, "It slid. Slid now to his throat" (T. 94).

On re-direct examination, Respondent testified that he was never shown Department's Exhibit 2A during his Department interview, and that having seen it at trial, it did alter his perception of what transpired during his encounter with JG. He testified that the photograph showed his hand on the outside of JG's sweatshirt, on the side of his neck. Respondent testified that, based on the video, JG lowered his chin and moved around, causing his hand to move. He again denied applying pressure to JG's throat, windpipe or carotid arteries (T. 103).

Specification 1: Restriction of Breathing/Chokehold

I find that the Department Advocate has failed to meet its burden of proof by a preponderance of the credible, relevant evidence that on April 6, 2023, Respondent restricted JG's breathing. I find that the Department Advocate has established by a preponderance of the credible, relevant evidence that Respondent used a chokehold, in violation of Patrol Guide procedure 221-01.

While Respondent was charged with restricting JG's breathing, Patrol Guide procedure 221-01 is nevertheless instructive. It defines a chokehold as "any pressure to the throat, carotid artery or windpipe, which may prevent or hinder breathing, or reduce intake of air or blood flow" (P.G. 221-01). The Patrol Guide prohibits the use of a chokehold (P.G. 221-01, page 3, paragraph (2)(b)).

The body-worn camera evidence in the record shows Respondent's hand around JG's neck (Dept. Ex. 1 at 10:43; Dept. Ex. 2 at 4:53). The video shows Respondent's right hand moving toward JG's neck with an open grip, then settling on his throat area, beneath his chin and under his beard. In his testimony, Respondent characterized the placement of his hand as "under [JG's] chin" (T. 74, 90, 96- 98). While his hand is indeed under JG's chin, a more accurate description is that it was around his throat, below his jawbone. Department's Exhibit 1 shows

Respondent's thumb in contact with the right side of JG's neck, aligned with the area under JG's jaw. The placement of Respondent's thumb was near JG's carotid artery, which could have impeded the flow of blood to his brain, had Respondent exerted enough pressure with his thumb.

Despite his argument that he was grasping JG's coat, the camera perspective of Department's Exhibit 2 shows two fingers of Respondent's right hand in contact with the left side of JG's neck, one finger touching JG's jacket collar, and his pinky touching an area of JG's coat just beneath the collar (Dept. Ex. 2A).

I credit Respondent's testimony that he believed JG was about to spit at him; I do not, however, credit his assertion that he grasped JG's chin and that JG's downward motion caused his hand to slip into a position around his neck. This assertion is at odds with the video evidence of Respondent's hand making its first contact with JG at the area of his throat, well beneath his chin. While it is certainly possible that Respondent intended to grasp JG by his chin, the video shows that he grasped JG by his throat; at no point does the video show Respondent's hand around JG's chin. Furthermore, if Respondent had indeed been grasping JG by either his chin or jawbone, and JG dropped his weight, such a maneuver would cause Respondent's hand to slide upward toward JG's cheek, rather than downward to JG's throat.

The pleadings before this Tribunal, however, allege that Respondent used excessive force by restricting JG's breathing. It is this element of the Department Advocate's burden of proof that is lacking. Department's Exhibit 1 does show JG asking, "You choking me, you choking me?" (Dept. Ex. 1 at 10:44-10:47). The video also shows a slight downward movement of JG's chin before he asked the question (*Id.*). The sound of JG's voice changes as if he were being choked, either by forward pressure of his neck in contact with Respondent's hand or by squeezing the throat area. Respondent denied placing any pressure on JG's neck which would

have caused his voice to change in the manner it did. He further explained that JG seemed to have “moved down on me, and he dropped a little weight. At which point, he stated ‘Are you choking me?’” (T. 74).

The pivotal issue before the Tribunal is whether Respondent’s denial is credible. Standing alone, it could be viewed as self-serving and lacking in substantial probative value. Based upon the totality of the evidence, I find that his denial is not credible, as it is contradicted by the video evidence in Department’s Exhibits 1 and 2.

Respondent’s body-worn camera video (Dept. Ex. 1) shows JG behaving in a belligerent, hostile and erratic manner. He is verbally abusive toward the responding police officers and uses profanity freely. While JG’s brother seemed to relish the opportunity to inflame the situation whenever he saw an opportunity to do so, it is also possible that JG was acting under the influence of some illicit substance or alcohol.⁷ As the police officer escorting him to the RMP attempted to place him inside the car, JG turns to his right and states, “I already f—d you – yo, don’t flex on me, bro ...” (Dept. Ex. 1 at 10:38-10:44). The video also seems to corroborate Respondent’s assertion that JG moved his head downward after Respondent put his hands on JG’s throat. The video also corroborates Respondent’s testimony that he pulled his hand away from JG’s throat as soon as he heard him asking whether Respondent was choking him.

Despite the above-described factors supporting Respondent’s denial, his body-worn camera recording also shows his right thumb bent at the knuckle toward the right side of JG’s throat. Police Officer Lekaj’s body-worn camera recording (Dept. Ex. 2) shows Respondent’s forefinger and middle finger curled toward the left side of JG’s neck. The combination of Respondent’s thumb and two fingers bent toward JG’s throat, from opposite perspectives, makes

⁷ As discussed above, JG had to be sedated when he was taken for medical treatment because his behavior was so erratic.

it more likely than not that Respondent gripped JG's throat, however slightly and however briefly. That grip would have placed pressure on JG's carotid artery and possibly his windpipe, which meets the definition of a chokehold.

JG never made an allegation of excessive force against Respondent and when given the opportunity to do so, he demurred. According to Lieutenant Ellis, JG stated that he did not remember being choked. JG did not appear during this trial and provide an opportunity for a full examination of any relevant evidence he possessed.

Based upon the compelling video evidence described above, and Respondent's testimony, there is insufficient evidence to establish that Respondent actually restricted JG's breathing. The evidence does establish, however, that the placement of Respondent's right hand, combined with the closing of his fingers and thumb around JG's neck, constituted a prohibited chokehold, as defined in Patrol Guide procedure 221-01, without regard to whether JG's breathing was in fact obstructed. Under these unique circumstances, I find that the pleadings, as drafted, attempted to impose an evidentiary burden which exceeded the requirements of proving the use of a chokehold under the Patrol Guide. The Tribunal is not bound by this inartful drafting in the face of the evidence in the record; to do so would achieve an unjust result.

Accordingly, I find Respondent Guilty of Specification 1.

PENALTY

In order to determine an appropriate penalty, this Tribunal, guided by the Department's Disciplinary System Penalty Guidelines, considered all relevant facts and circumstances, including potential aggravating and mitigating factors established in the record. Respondent's employment history was also examined (*See* 38 RCNY § 15-07). Information from his personnel record that was considered in making this penalty recommendation is contained in an attached memorandum.

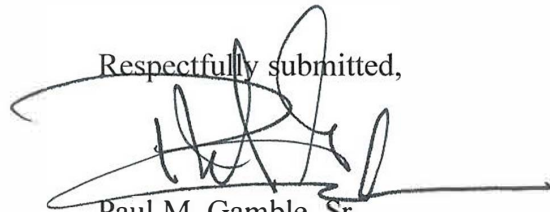
Respondent, who was appointed to the Department on January 10, 2007, has been found Guilty of using a prohibited chokehold. The presumptive penalty is termination; the mitigated penalty is forced separation (*Disciplinary Matrix*, p. 24).

It is unfortunate that this finding of misconduct will end the career of a Member of Service with years of honorable service to this Department. The maintenance of good order and discipline requires that high standards be set and enforced. Occasionally, the seriousness of a finding of misconduct requires that someone with an otherwise unblemished career be separated involuntarily; this appears to be such a case.

I note with favor Respondent's positive employment history and his many recognitions; in particular, I note Chief Gazis' evaluation of Respondent's recent performance in the Medical Division. On the other hand, Respondent's role as a supervisor is an aggravating circumstance. His presence at the scene of an arrest was intended to ensure Members of Service adhere to Patrol Guide procedures in the performance of their duties. Instead, Respondent's actions departed from the high standard expected of supervisors in the field.

Based upon the totality of the evidence, I recommend that Respondent be DISMISSED from this Department.

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'Paul M. Gamble, Sr.', written over a horizontal line.

Paul M. Gamble, Sr.
Assistant Deputy Commissioner Trials

DISAPPROVED

JAN 12 2026

**JESSICA S. TISCH
POLICE COMMISSIONER**



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials

To: Police Commissioner

Subject: SUMMARY OF EMPLOYMENT RECORD
LIEUTENANT KENNETH FARRELL
TAX REGISTRY NO. 943220
DISCIPLINARY CASE NO. C-031230

Respondent was appointed to the Department on January 10, 2007. On his three most recent performance evaluations, he twice received 4.5 ratings of “Extremely Competent/Highly Competent” in 2022 and 2023, and received a 5.0 rating of “Extremely Competent” in 2021. He has been awarded five medals for Excellent Police Duty.

Respondent has no formal disciplinary history.

For your consideration.

Paul M. Gamble, Sr.
Assistant Deputy Commissioner Trials